

MARTIN COURT OWNERS ASSOCIATION

RULES AND REGULATIONS

A. SCOPE OF RULES AND REGULATIONS

These rules apply to all owners and residents, their children and their guests. Owners are responsible for the actions of their tenants and guests. Fines imposed for rule violations accrue against the unit owner, not the tenant or guest. Tenants and guests are required to abide by the Rules and Regulations, Declaration of Covenants, Conditions and Restrictions, and Bylaws. Owners are responsible for informing their tenants and guests of the Rules and Regulations.

B. INFORMATION REQUIRED FROM RESIDENTS

Owners and tenants will provide the property management company with a completed copy of the Resident and Owner Information form. Any changes must be reported to the property management company within 15 days.

C. GENERAL USE AND MAINTENANCE

"Common Area" is that area outside the units that is jointly owned by all homeowners and maintained by the Homeowners' Association. Each resident is responsible for the cleaning and maintenance of their balcony. This rule also applies to those units which have patios instead of balconies. Repair and maintenance of deck and patio areas is the responsibility of the individual homeowner.

Any common entrances, passageways or driveways must not be obstructed or used by any resident for any purpose other than entering and leaving.

The common areas, driveways and parking spaces shall not be used to store any items or vehicles.

Vehicles are not allowed to be parked on the shared driveways at any time. This includes any areas intended for emergency vehicle turn around. Vehicles parked in these areas are subject to be towed at the Owners Expense and may be subject to Deed Restriction Violation fees.

Fencing and screening on balconies and patios shall not be permitted without the prior written approval of the Owners Association.

Balconies and patios that are visible from any street or drive shall not be used to store unsightly items, including but not limited to jungle gyms, swings, children's toys, sports apparatus, flammable or toxic materials, trash or storage containers, debris, dead plants, laundry, broken furniture, or bicycles.

No explosive or flammable substances, such as gasoline, gun powder, kerosene, naphtha, benzene or other articles or substances deemed hazardous to persons or property shall be stored anywhere on the property.

Trash containers, household supplies, bottles and cans, garden tools and other similar articles are not to be stored outside any home. Trash containers may be placed outside no sooner than midnight the day prior to trash day, and must be placed back inside the resident's garage no later than midnight on the day that trash has been serviced. Failure to abide by this rule will result in a written warning. Continued failure to abide by this rule will result in a fine of \$50 after two written warnings. Fines will continue to be assessed and will increase by \$50 for each infraction.

Each unit shall be utilized as a private residence. No commercial businesses will be allowed. This provision shall not act to prohibit a unit owner from keeping professional or personal records or accounts, handling personal business or professional calls, or conferring with business or professional associates, clients or customers.

All exterior lighting/lightbulbs, including photocells, are the responsibility of the homeowner and should be maintained in functioning order at all times. Failure to abide by this rule will result in a written warning. Continued failure to abide by this rule will result in a fine of \$50 after two written warnings. Fines will continue to be assessed and will increase by \$50 for each infraction.

D. CHANGES TO EXTERIOR APPEARANCE OF HOME

Changes cannot be made to the exterior appearance of the home without the written consent of the Owners Association. Every Owner wishing to make changes to the exterior of the home must submit an Architectural Change Request Form to the HOA. No work may begin until the application has been approved by the HOA Board.

E. SATELLITE DISHES

Satellite dishes may be installed, their location must be approved by the Owners Association prior to installation. The location should be in an inconspicuous spot.

F. GENERATORS

Generators may be installed with prior written approval from the Owners Association. When issuing approval, the Association will consider the type of generator, proposed location and amount of noise the generator could potentially cause.

G. LEASES

Should an owner elect to lease his home, a Lease Notice must be provided to the HOA within 15 days of the effective date of the lease. All leases must be for a period of one year or more. All tenants must be provided with a copy of the Declaration of Covenants, Conditions & Restrictions, the Bylaws and these Rules & Regulations.

All leases must state that the Tenant will abide by these documents. Owners are responsible for ensuring that all tenants abide by the Rules of the Community. If a tenant violates any of the Rules and Regulation, the owner may be fined for the violation.

H. GARBAGE DISPOSAL

No trash containers shall be left outdoors except on the morning of trash collection.

Trash containers shall be maintained in a clean and sanitary manner.

No part of the common area may be used as a dumping ground for materials of any kind.

Garbage containers must be stored in the garage or out of the line of sight on non-trash pick-up days.

I. PETS

No animals or fowl may be kept or bred for commercial purposes.

A maximum of two pets are allowed per home.

No pets shall be permitted to run at large and must be supervised by the pet owner when outdoors at all times. Any nuisance or danger caused by a pet will be the responsibility of the pet owner.

Pet food and litter boxes shall not be stored or left outdoors.

Pet owners shall pick up and dispose of their pets' waste at all times. Care should be exercised to prevent pets from causing damage to any of the landscape.

Violation of any of the rules regarding pets shall result in a written warning to the pet owner that may include fines and fees associated with the violation notice. If the pet owner does not correct the behavior creating the violation, that owner will be required to remove the pet after the third written warning.

J. VEHICLES AND PARKING

Residents are encouraged to park their vehicles in their garages unless they are loading, unloading or washing the vehicle. Parking vehicles on the common driveway is absolutely forbidden, as it restricts other residents' and emergency vehicle access. **This includes any areas intended for emergency vehicle turn around. Vehicles parked in these areas are subject to be towed at the Owners Expense and may be subject to Deed Restriction Violation fees.** Garage doors are to be kept always closed except when entering or leaving the garage or when you are physically present in the garage.

Visitor parking spaces are on a space available basis near the front gate of the property for guests and visitors. **Homeowners should not park in the guest parking areas or block these areas in any way.** The visitor parking areas are considered common areas for the HOA. Homeowners and their guests should utilize garages and driveway spaces before using common area spaces.

Homeowners and their guests may not park in a manner which obstructs the sidewalks or drives.

All vehicles must be operable and currently licensed. No vehicle in a state of disrepair may be parked anywhere other than the garage of the resident. No inoperable vehicle shall be permitted to be stored on the premises, except within the confines of the unit garage.

Parking of boats, trailers, motorcycles, trucks, truck campers, or other recreational vehicles or similar equipment and vehicles shall not be allowed on any part of the property except within the confines of an enclosed garage.

No repairs to vehicles shall be permitted on the premises except within the confines of the unit garage. No racing of engines or tire-squealing accelerations shall be permitted.

Residents shall be responsible for the cleanliness of their respective driveways, including the removal of any grease or oil buildup. The Association may clean such area at the expense of the homeowner, if the homeowner or tenant fails to do so.

No vehicle which contains any material which may be considered dangerous, unsightly or odoriferous may be parked anywhere in the common area or in the guest parking spaces.

Any vehicle parked on the premises that violates any of these rules and regulations may be towed at the expense of the owner. The owner may also be subject to Deed Restriction Violation Fees.

Moving trucks may only access the property during normal business hours and between 9am and 3pm on Saturdays. Movers must take care not to obstruct other residents' driveways or the flow of traffic through the neighborhood. Movers must take care not to damage streets, curbs, landscape, irrigation system, etc. If damage is caused by a moving truck, the homeowner that has employed the mover will be responsible for the cost of repair.

K. NOISE

Homeowners, tenants and guests are to be respectful of their neighbors and keep noise, including but not limited to voice, radios, television, I-pods/MP3 players, musical instruments, power tools and vehicles, at a reasonable volume, one that does not disturb other households.

L. LANDSCAPING

The Association employs a professional landscape contractor to provide maintenance to the common grounds. The Owners Association is responsible for supervising all landscape maintenance. This does not include any plants or flowers planted by residents. Residents should limit any plantings to the confines of their patios and balconies.

M. VACANT HOMES

The owner of a vacant home shall insure that the indoor temperature of the home remains at a level that prevents freezing or damage to pipes. The owner will also ensure that the patios and balconies remain debris free and not be used for storage.

N. REAL ESTATE SIGNAGE

Each home may have one sign for the purpose of advertising a home for sale or lease, no larger than 24"x36". This may be a staked sign in the front yard or a sign in the window.

O. Garage sales and Estate sales are not permitted anywhere within the community.

P. FINES FOR VIOLATIONS OF RULES AND DEED RESTRICTIONS

Any violation of these Rules or the Deed Restrictions governing the Association will result in a written warning with a 30 notice to cure. This warning will be sent via Certified Mail and the warning will outline the fine process if the violation is not cured. The owner will be responsible for the US Postal fees associated with mailing the violation letter and will be charged an administrative fee of \$35 per violation notice.

If the violation is not cured within the required 30 day time period, a fine of will be assessed. An additional fine will continue to be assessed every 30 days until the violation is cured. Unpaid fines are subject to late fees and interest charges of 18% from the date of the violation has occurred.

Please see Deed Restriction Violation Process and Procedure Document for specific details on fee amounts and violation procedures.